

illusory nature of the arbitration agreement, unconscionability, and the unequal bargaining power between the parties, he has waived such arguments on appeal. *See District of Columbia v. Air Florida, Inc.*, 750 F.2d 1077, 1084 (D.C.Cir.1984) ("issues and legal theories not asserted at the District Court level ordinarily will not be heard on appeal").

Pursuant to D.C. Circuit Rule 36, this disposition will not be published. The Clerk is directed to withhold issuance of the mandate herein until seven days after resolution of any timely petition for rehearing or petition for rehearing en banc. *See* Fed. R.App. P. 41(b); D.C.Cir. Rule 41.

**Luqman ABDURRAHMAN,
a/k/a Tyrone Tilephus
Reid, Appellant**

v.

**David F. ENGSTROM, Assistant
General Counsel, Appellee.**

No. 05-5081.

United States Court of Appeals,
District of Columbia Circuit.

Oct. 13, 2005.

Rehearing En Banc Denied
Feb. 15, 2006.

Luqman Abdurrahman, Muskegon, MI,
pro se.

R. Craig Lawrence, Assistant U.S. Attorney, U.S. Attorney's Office, Washington, DC, for Defendant-Appellee.

Before GINSBURG, Chief Judge, and SENTELLE and HENDERSON, Circuit Judges.

JUDGMENT

PER CURIAM

This appeal was considered on the record from the United States District Court for the District of Columbia and on the brief filed by appellant. It is

ORDERED AND ADJUDGED that the district court's orders filed February 1, 2005 and March 2, 2005 be affirmed. An action may not be brought against the United States pursuant to the Federal Tort Claims Act ("FTCA") unless the claimant has first presented his claim to the appropriate federal agency and the claim has been denied by the agency. *See* 28 U.S.C. § 2401(b); *McNeil v. U.S.*, 508 U.S. 106, 111, 113 S.Ct. 1980, 124 L.Ed.2d 21 (1993). Appellant argues that his October 24, 2003 complaint to the United States General Accounting Office was sufficient to satisfy the FTCA's exhaustion requirement. To satisfy the FTCA's exhaustion requirement, however, an administrative claim must describe the alleged injury with sufficient particularity to allow the agency to investigate and assess the strength of the claim. *See GAF Corp. v. U.S.*, 818 F.2d 901, 919-20 (D.C.Cir.1987). Appellant did not do so and, therefore, the district court properly dismissed the case for lack of subject matter jurisdiction.

Pursuant to D.C. Circuit Rule 36, this disposition will not be published. The Clerk is directed to withhold issuance of the mandate herein until seven days after resolution of any timely petition for rehearing or petition for rehearing en banc.

See Fed. R.App. P. 41(b); D.C.Cir. Rule 41.

Luis A. VAZQUEZ, Appellant

v.

**William REHNQUIST, Chief
Judge, et al., Appellees.**

No. 05-5155.

United States Court of Appeals,
District of Columbia Circuit.

Oct. 13, 2005.

Luis A. Vazquez, Pine City, NY, pro se.

R. Craig Lawrence, Assistant U.S. Attorney, U.S. Attorney's Office, Washington, DC, for Appellees.

Before GINSBURG, Chief Judge, and
RANDOLPH and ROGERS, Circuit
Judges.

JUDGMENT

PER CURIAM

This appeal was considered on the record from the United States District Court for the District of Columbia and on the brief filed by appellant. It is

ORDERED AND ADJUDGED that the district court's order filed April 7, 2005 be affirmed. The district court properly determined that appellant's claims are barred by judicial immunity. The doctrine of judicial immunity grants judges abso-

lute immunity for damages based on acts committed within their judicial jurisdiction, such as the decision of whether to grant a petition for writ of certiorari. See *Stump v. Sparkman*, 435 U.S. 349, 98 S.Ct. 1099, 55 L.Ed.2d 331 (1978); *Turner v. Barry*, 856 F.2d 1539 (D.C.Cir.1988).

Pursuant to D.C. Circuit Rule 36, this disposition will not be published. The Clerk is directed to withhold issuance of the mandate herein until seven days after resolution of any timely petition for rehearing or petition for rehearing en banc. See Fed. R.App. P. 41(b); D.C.Cir. Rule 41.

Henry T. SANDERS, Appellant

v.

UNITED STATES of America and United States Court of Appeals for the Fourth Circuit, Appellees.

No. 05-5264.

United States Court of Appeals,
District of Columbia Circuit.

Oct. 17, 2005.

Henry T. Sanders, Landover, MD, pro se.

R. Craig Lawrence, Assistant U.S. Attorney, U.S. Attorney's Office, Washington, DC, for Defendant-Appellee.